

STATE OF NEW YORK

7468--A

Cal. No. 778

2025-2026 Regular Sessions

IN SENATE

April 17, 2025

Introduced by Sen. HOYLMAN-SIGAL -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading

AN ACT to amend the New York city civil court act, the uniform city court act, the uniform district court act and the uniform justice court act, in relation to expanding the available jurisdiction for issuing information subpoenas

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision (d) of section 1812 of the New York city civil
2 court act, as amended by chapter 80 of the laws of 1992, is amended to
3 read as follows:

4 (d) Where a judgment has been entered in a small claims court and
5 remains unsatisfied, the small claims clerk shall, upon request, issue
6 information subpoenas, at nominal cost, for the judgment creditor and
7 provide the creditor with assistance on their preparation and use.

8 Notwithstanding section twelve hundred one of this act, the court shall
9 issue such information subpoenas to be served anywhere in the state upon
10 request. The court shall have the same power as the supreme court to
11 punish a contempt of court committed with respect to an information
12 subpoena.

13 § 2. Subdivision (d) of section 1812 of the uniform city court act, as
14 amended by chapter 80 of the laws of 1992, is amended to read as
15 follows:

16 (d) Where a judgment has been entered in a small claims court and
17 remains unsatisfied, the small claims clerk shall, upon request, issue
18 information subpoenas, at nominal cost, for the judgment creditor and
19 provide the creditor with assistance on their preparation and use.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 Notwithstanding section twelve hundred one of this act, the court shall
2 issue such information subpoenas to be served anywhere in the state upon
3 request. The court shall have the same power as the supreme court to
4 punish a contempt of court committed with respect to an information
5 subpoena.

6 § 3. Subdivision (d) of section 1812 of the uniform district court
7 act, as amended by chapter 80 of the laws of 1992, is amended to read as
8 follows:

9 (d) Where a judgment has been entered in a small claims court and
10 remains unsatisfied, the small claims clerk shall, upon request, issue
11 information subpoenas, at nominal cost, for the judgment creditor and
12 provide the creditor with assistance on their preparation and use.

13 Notwithstanding section twelve hundred one of this act, the court shall
14 issue such information subpoenas to be served anywhere in the state upon
15 request. The court shall have the same power as the supreme court to
16 punish a contempt of court committed with respect to an information
17 subpoena.

18 § 4. Subdivision (d) of section 1812 of the uniform justice court act,
19 as amended by chapter 650 of the laws of 1991, is amended to read as
20 follows:

21 (d) Where a judgment has been entered in a small claims court and
22 remains unsatisfied, the small claims clerk shall, upon request, issue
23 information subpoenas, at nominal cost, for the judgment creditor and
24 provide the creditor with assistance on their preparation and use.

25 Notwithstanding section twelve hundred one of this act, the court shall
26 issue such information subpoenas to be served anywhere in the state upon
27 request. The court shall have the same power as the supreme court to
28 punish a contempt of court committed with respect to an information
29 subpoena.

30 § 5. This act shall take effect on the ninetieth day after it shall
31 have become a law.